

P O R T E R | S C O T T

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Attorneys for Defendants

CSAA INSURANCE EXCHANGE;

CARBONE, SMITH & KOYAMA;

and MICHAEL R. CHAMBERS

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

08/11/2026

Clerk of the Court

BY: SANDRA SCHIRO

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM;

CSAA INSURANCE EXCHANGE;

DOES 1 through 50, inclusive;

Defendants.

Case No.: CGC-25-631801

**DEFENDANTS CSAA INSURANCE
EXCHANGE, CARBONE, SMITH &
KOYAMA, AND MICHAEL R. CHAMBERS'
NOTICE OF MOTION AND MOTION FOR
ATTORNEYS' FEES AND COSTS UNDER
C.C.P. § 425.16(c)**

Date: September 8, 2026

Time: 9:00 a.m.

Dept: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

1 **TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:**

2 PLEASE TAKE NOTICE that on the above date and time and in the above department of the San
3 Francisco County Superior Court, located at 400 McAllister Street, San Francisco, CA 94102, or as soon
4 thereafter as this matter may be heard, Defendants CSAA INSURANCE EXCHANGE; CARBONE,
5 SMITH & KOYAMA; and MICHAEL R. CHAMBERS will and hereby do move for an Order awarding
6 Defendants' Attorneys' Fees and Costs—*as against Plaintiff*—pursuant to Code of Civil Procedure §
7 425.16(c), including an award of \$37,110.46, in attorney's fees (\$35,973.00) and costs (\$1,137.46)
8 incurred in this case.

9 This motion is made pursuant to California Code of Civil Procedure § 425.16(c) on the grounds
10 that Plaintiff brought this action targeting Defendants' protected litigation activity and this Court issued a
11 minute order granting Defendants' Anti-SLAPP motion on May 12, 2026. This Court signed a final Order
12 granting Defendants' Anti-SLAPP motion on August 6, 2026.

13 This Motion is based on this Notice, the Memorandum of Points and Authorities in Support
14 thereof, the Declaration of Tyler J. O'Connell, supporting evidence, all pleadings and papers on file, and
15 on such oral and documentary evidence as may be presented at the hearing on the Motion, should one be
16 held.

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1 **TENTATIVE RULINGS:**

2 The San Francisco Superior Court adopts CRC 3.1308 as the tentative ruling procedure in civil
3 law and motion and discovery matters. Parties may obtain a tentative ruling issued by the Law and Motion
4 and Discovery Departments by telephoning (415) 551-4000 or visiting the court's website at
5 <https://sf.courts.ca.gov/> and clicking the online services link. Tentative rulings are generally available by
6 3:00 p.m. the day before the hearing. A tentative ruling that does not become available until after 3:00
7 p.m. is a late tentative ruling. A late tentative ruling will indicate that the ruling is late. If a tentative ruling
8 is late, the parties must appear unless all parties agree to submit to a late tentative ruling in which case the
9 Court will adopt the late tentative ruling.

10
11 Dated: August 11, 2026

PORTER SCOTT
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12
13 *Tyler J. O'Connell*

14 By _____

15 Chad S. Tapp
16 Tyler J. O'Connell
17 Attorneys for Defendants
18 CSAA INSURANCE EXCHANGE;
19 CARBONE, SMITH & KOYAMA;
20 and MICHAEL R. CHAMBERS
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PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

On August 11, 2026, I served the following document: **DEFENDANTS CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND MICHAEL R. CHAMBERS' NOTICE OF MOTION AND MOTION FOR ATTORNEYS' FEES**

	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed at Shingle Springs, California on August 11, 2026.

Monique Schubert
Monique Schubert